

Personal appearance and appearances via ZOOM are available.

Probate Calendar for Friday, October 2, 2026
9:00 a.m. in Department Paso 2, with Judge Michael C. Kelley presiding

No.	Case Number	Case Name	Type of Matter	Probate Notes
<u>The following matters are OFF CALENDAR/ DISMISSED/ TERMINATED or CONTINUED:</u>				
13	26PR-0163	Conservatorship of: Russell Dillingham	Order to Show Cause re Dismissal	DISMISSED LIST. <i>It is recommended the matter be dismissed based on the Declaration filed May 26, 2026.</i>
14	26PR-0267	Estate of: Gerald Swartz	Petition Filed 07/27/2026 - WILL	CONTINUED LIST. <i>The Petition is continued to December 18, 2026 at 9:00 a.m. in P-2. All additional items must be filed by November 20, 2026. The following is noted:</i> <i>All persons entitled to notice were not served with the Notice of Petition to Administer Estate. (JC Form DE-121; Prob. Code, § 8110.) Specifically, Marie Jean Mier, Nikki Chapman, Wendy Jean Munzel, and Bob (no last name provided), all of whom appear to have been recently discovered. An address must be provided for each. A declaration of diligent search is needed if notice cannot be provided.</i> <i>It appears from the proof of service of Notice of Hearing filed September 1, 2026 that multiple parties were served via email. However, Item 3b of the proof of service indicates that the Notice was mailed to the parties. It is unclear in which manner the parties were actually served.</i>

				<i>Clarification is needed. Service by mail is required if consents to electronic service cannot be obtained.</i> 3. <i>It is unclear if the Will provided has been admitted to probate in Canada. Is this an ancillary probate administration? Are there currently proceedings in Canada to administer any other assets of this estate? If proceedings occurred, a copy of the order and letters from that Court are needed as to this purported Will and who was appointed as administrator in that proceeding. Information is needed as to the status of that matter, if it exists.</i>
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APPROVED LIST

No matters are listed.

HEARING LIST

1	16PR-0046	Guardianship of: Jaedon Garcia	Trial Setting Conference	HEARING LIST: <i>Zoom or personal appearance is required.</i>
2	18PR-0028	Guardianship of: Cherysh Kimzey	Status Conference cont'd 9/18/2026	HEARING LIST: <i>Zoom or personal appearance is needed.</i>
3	21CVP-0066	Garrold Lemons vs. Brian Lemons	Minors Compromise Filed 10/2/26	<i>Still under review, please check back.</i>
4	24CVP-0409	Josh Lorenzo vs. David Raminha	Minors Compromise Filed 05/13/2026	HEARING LIST: <i>Zoom or personal appearance is required. The minor and Petitioner should appear via Zoom or in person for examination under California Rules of Court, rule 7.952. The following issues are noted:</i>

				1. <i>Item 9 of the Petition is not checked. It is unclear if Petitioner is aware that if this Petition is approved, the claimant will never be able to recover any more compensation from the settling defendants. Clarification is needed.</i> 2. <i>Item 23 of the Petition is incomplete. It is unclear if all the intended attachments are included.</i>
5	25PR-0188	Guardianship of: Issiah Serna	Petition Filed 8/6/2025 - Termination of Guardianship; Cont'd 10/31/25, 3/6/26 & 7/10/26	HEARING LIST: Zoom or personal appearance is required. The following issues are noted: 1. <i>Proof of service of <u>Notice of Hearing</u> on the Petition for Termination was not located. See Probate Code sections 1460, 1510 subdivision (c) and 1601.</i> a. <i>Still missing:</i> i. <i>There are numerous proofs of service showing documents provided to the father of the minors, Fernando Serna Jr. None of those proofs of service provides the actual GC-020 and the date on the Notice of Hearing served.</i> ii. <i>Proof of service of Notice of Hearing was not located on:</i> 1. <i>John Xavier (maternal grandfather) and</i> 2. <i>Isaiah Ray Serna (brother)</i> 3. <i>Fernando Serna Sr. (paternal grandfather). Notice served on June 29th was for the</i>

				<i>guardianship Petition only.</i> iii. <i>If a party cannot be located, a declaration of diligent search is needed. It is noted some declarations have been filed, but they do not appear to explain current efforts to find parties. Rather, they only indicate parties cannot be located without addressing efforts taken.</i> 2. <i>At the October 31, 2025 hearing, the Court instructed Petitioner to provide notice of the subpoenaed records to opposing counsel. Nothing has been provided. The Court, at the hearing on October 31, 2025 indicated it would not release the records at that time. It is unclear why the subpoenas have not been served on the guardian yet.</i> 3. <i>An Objection to the successor guardianship Petition has been filed, and it appears that the objection applies to this Petition as well.</i>
6	25PR-0188	Guardianship of: Issiah Serna	Petition Filed 8/6/2025 - Guardianship PERSON; Cont'd 10/31/25, 3/6/26 and 7/10/26	HEARING LIST: Zoom or personal appearance is required. The following issues are noted: 1. <i>Proof of service of <u>Notice of Hearing</u> on the Petition for Termination was not located. See Probate Code sections 1460, 1510 subdivision (c) and 1601.</i> a. <i>Still missing:</i> i. <i>There are numerous proofs of service showing documents provided to the father of the minors, Fernando Serna Jr. None</i>

				<i>of those proofs of service provides the actual GC-020 and the date on the Notice of Hearing served.</i> <i>ii. Proof of service of Notice of Hearing was not located on:</i> <i>1. John Xavier (maternal grandfather) and</i> <i>2. Isaiah Ray Serna (brother).</i> <i>iii. If a party cannot be located, a declaration of diligent search is needed. It is noted some declarations have been filed, but they do not appear to explain current efforts to find parties. Rather, they only indicate parties cannot be located without addressing efforts taken.</i> <i>b. Recommended to accept, based on the Declaration of Due Diligence provided.</i> <i>i. Notice on Elijah Serna. Based on the last filing, dated June 29th showing rejection of the mailing at the known address, the declaration of diligent search filed February 13, 2026 is recommended for acceptance.</i> <i>ii. Notice on Aliana Marie Serna, mother. It is recommended the Court accept the Declaration of Diligent Search provided on July 2, 2026.</i>
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				2. <i>At the October 31, 2025 hearing, the Court instructed Petitioner to provide notice of the subpoenaed records to opposing counsel. Nothing has been provided. The Court, at the hearing on October 31, 2025 indicated it would not release the records at that time. It is unclear why the subpoenas have not been served on the guardian yet.</i> 3. <i>An Objection has been filed.</i>
7	25PR-0388	In Re: Persephone Kelly-Wilkinson	Minors Compromise Filed 12/2/25; Cont'd 2/6/26 & 5/8/26	HEARING LIST: Zoom or personal appearance is required. The following issues are noted: 1. <i>The prognosis in Item 8(a) of the Petition indicates the minor has recovered completely from the injuries sustained in the accident. The medical reports attached as Attachment 8 do not indicate that the minor has fully recovered. The Clinical Visit Summary dated March 1, 2024 indicates that the minor was to return to clinic in 1-2 months, sooner if worse. Clarification is needed regarding the claimant's current condition.</i> 2. <i>Petitioner is requesting the funds be paid directly to Petitioner. Attachment 18b(5) does not list the address of the parent as required by Item 18b(5). A supplement is needed.</i> 3. <i>The minor and Petitioner should appear via Zoom or in person for examination under California Rules of Court, rule 7.952.</i>
8	26PR-0048	In Re: Jake Wight	Order to Show Cause re: Proof of Deposit	HEARING LIST: Zoom or personal appearance is required.
9	26PR-0070	Conservatorship of: Suzanne Ritcheson	Petition Filed 03/05/2026 - Conservatorship -	HEARING LIST: Zoom or personal appearance is needed. It is noted that the Status Report filed September 18, 2026 indicates that the parties are currently in negotiations to try to resolve the matter. No

			Person Only; Cont'd 7/10/26	<i>further updates have been provided. If Petitioner intends to pursue the matter, the following issues remain:</i> <i>1. Petition issues:</i> <i>a. Item 1.d. is marked regarding powers under Probate Code section 2590. An estate is not requested. Attachment 1.d. discusses powers that are not found under Probate Code section 2590 or are inapplicable because an estate is not involved. For example, Probate Code section 2950 or 2951 allows powers to void documents. It is unclear why the power to sell real property or let or lease estate property would apply, or why the petitioner would need to hire accountants or investment managers to manage assets not under the control of this conservatorship. All powers requested under section 1.d. are recommended for denial. It is unclear what is requested.</i> <i>b. Item 1.e is marked, but item 1.e. discusses powers having to do with estate management. NO estate is requested. This power is recommended for denial.</i> <i>c. Item 1.f is marked, but item 1.f. does not explain what specific additional powers are requested for the care, treatment, and welfare of the proposed conservatee. This section is where one asks for additional powers, beyond those</i>
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				<i>automatically granted. Clarification is needed. See Probate Code section 2358.</i> <i>d. Item 1.g. is not marked, but section 1.f appears to ask for some kind of ability to care for or handle medical treatment. What is being requested? See item 1.f.</i> <i>2. An Objection has been filed.</i> <i>3. A proposed Order is needed.</i> <i>4. Proposed letters are needed.</i>
10	26PR-0160	In Re: Eduardo Zermeno	Minors Compromise Filed 05/13/2026	HEARING LIST: Zoom or personal appearance is required. The minor and Petitioner should appear via Zoom or in person for examination under California Rules of Court, rule 7.952. The following issues are noted: <i>1. Petitioner indicates that she is the parent and guardian ad litem of claimant but there does not appear to be a pending civil lawsuit or application and order for guardian ad litem filed. No guardian ad litem appears necessary under Probate Code section 3500. Clarification is needed.</i> <i>2. Additional information is needed as to the costs charged, specifically the “On-Call Attorney Services” of \$200. The fees appear to be excessive based on the limited filings in the case. Clarification is needed.</i> <i>3. Item 23 of the Petition is incomplete. It is unclear if all the intended attachments are included.</i> <i>4. If the Petition is approved, the Court will set an OSC re: Proof of Deposit for November 20, 2026, at 9:01 a.m. in P-2. The funds are to be</i>

				<i>distributed directly into a blocked account at Chase Bank in San Luis Obispo.</i>
11	26PR-0161	Conservatorship of: Brittany Johnson	Petition Filed 05/13/2026 - Appointment of Conservator - Person	<i>Still under review, please check back.</i>
12	26PR-0162	Conservatorship of: James Havard	Petition Filed 05/13/2026 - Appointment of Conservator - Person & Estate	<i>Still under review, please check back.</i>
15	PR010248	Conservatorship of: Matthew Guy	Petition First Account and Report of Trustee Filed 7/31/2024; Cont'd 1/24/25, 2/7/25, 5/16/25, 11/14/25, 12/19/25 & 5/8/26	<i>Still under review, please check back.</i>
16	PR010248	Conservatorship of: Matthew Guy	Petition Second Account and Report of Trustee Filed 9/25/2024, 11/14/25, 12/19/25 & 5/8/26	<i>Still under review, please check back.</i>
17	PR010248	Conservatorship of: Matthew Guy	Petition Third Account and Report of Conservator Filed 9/25/24, 11/14/25, 12/19/25 & 5/8/26	<i>Still under review, please check back.</i>

18	PR010248	Conservatorship of: Matthew Guy	Order to Show Cause re: Increased Bond; Cont'd 5/8/26	<i>Still under review, please check back.</i>
19	26PR-0269	Guardianship of: Leilani Donnelly & Orion Donnelly	Hearing Reconsideration on Temp. Petition Filed 8/6/2026	HEARING LIST: <i>Zoom or personal appearance is required. It is noted that a Proof of Service was filed on September 16, 2026 indicating service on both of the minors and the mother. However, it is unclear if they were served with notice for this hearing date as a Notice of Hearing was not located in the file. Additionally, it is unclear if the father has been served. The first page of the Proof of Service indicates service at the address provided for the father in the Petition, but the Proof of Service does not indicate who was served at this address. Clarification is needed.</i>

Subject to the rules below, attorneys and parties to a case may now contact the Probate Research Department using the following email: probate@slo.courts.ca.gov.

The following rules apply to use of the foregoing email address. An email that does not comply with the requirements below may not be reviewed.

1. Emails must be related only to a Probate Note (past or present).
 - a. The following exceptions apply: (1) A party or attorney has specifically received an email from the Court on an issue requiring response; or (2) the Court directed an email be sent to the Probate Research Department (Examples: Solicited email from a bench officer or a Court Attorney or information ordered to be provided via email by bench officer in Court).
2. Emails must contain:
 - a. **Subject Line: Hearing Date, Time, Department, Case Number and Case Name (Example: 10/1/19, 9:00, D99, 18PR0000, Estate of John Smith).**
 - b. **First Line of Email Body: Case Number, Case Name, and Description of the pleading on the calendar.**
 - c. **Reason for Request.**
 - d. **No Attachments.**

3. Further, email inquiries must conform to the following guidelines:
 - a. Questions must be from an attorney or party on the case.
 - b. The Court's response after the initial reply is limited to one email message per calendar matter, per hearing.
 - c. The body of the email (Reason for Request under item 2.c.) is limited to (5) lines to each deficiency or issue.
 - d. Emails may only inquire into clarifications regarding the Probate Note. This includes clarifying language, code sections, court rules and policies related to the Probate Note. Disputes regarding requirements or issues raised in the Probate Note may not be made via email.
 - e. Emails advising the Court of possible oversights may be sent.
 - f. **Continuances may not be requested via the probate email address.**
4. This email procedure is NOT to be utilized for:
 - a. Any requests for legal advice (including, but not limited to, how to clear the Probate Note), case management, and/or a recommendation for an attorney.
 - b. Confirmation of documents received by the Court. Please refer to the conformed copy of your filed document to confirm the Court's receipt. If you have not received a conformed copy of your document, please contact the Civil Clerk's Office.
 - c. Confirmation that documents have been reviewed.
5. Response Time. All correspondence will be addressed on a priority basis according to the hearing date. The Probate Research Department will make every effort to respond within two Court days of receipt of the email.